3.

CASE #	CASE NAME	HEARING NAME
CVPS2505623	BALBINI VS GENERAL MOTORS, LLC	MOTION FOR ATTORNEYS FEES BY JULIE BALBINI

Tentative Ruling: Under Civil Code § 1794(d) (Song-Beverly Act), "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." Here, Plaintiff accepted Defendant's C.C.P. § 998 offer, which states that Plaintiff are the prevailing party and that Defendant shall pay Plaintiff's attorney fees, costs, and expenses upon separate motion. (Hoddick Decl., ¶ 5.)

Attorney Fees:

At issue in this motion is the reasonableness of Plaintiff's request. The matter of reasonableness of a party's attorney fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co*. (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party's attorney fees. These include "the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney's efforts, and time consumed. [Citation omitted.]" (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.)

Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically in exercising its discretion, the Court may consider all the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

Here, the procedural history includes only a Complaint, Answer, joint stipulation for a protective order, and Notice of Settlement. There is no evidence that the parties engaged in any law and motion, or that the case involved anything more complicated than a routine Song-Beverly claim.

Lodestar is the objective starting point to determine if attorney fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hour spent on the case. (*Ibid*.) Lodestar requires the court to determine what a reasonable rate and number of hours expended. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

Based on the time records and Declaration of Larry R. Hoddick, ¶ 6, counsel expended 15.6 hours at an hourly rate of $625.00, incurring a lodestar of $9,750.00.

Here, counsel's hourly rate is not reasonable for Riverside County. Accordingly, the Court reduces the requested rate.

Further, a review of the billing records reveals that counsel billed for pre-retention services, such as meeting with the potential client. Plaintiff argues that client intake services are recoverable because they are reasonably incurred in connection with the commencement of a Song-Beverly action. (Civ. Code § 1794(d).) However, "by definition, the term 'attorney fees' implies the existence of an attorney-client relationship, i.e., a party receiving professional services from a lawyer." (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1094, 1092.) "Whether fees are incurred is evidenced by an obligation to pay attorney fees, the existence of an attorney-client relationship…." (*Dzwonkowski v. Spinella* (2011) 200 Cal.App.4th 930, 935.) Accordingly, the Court strikes 1.0 hour from Attorney Hoddick's billing.

Counsel then seeks 3.0 hours in anticipated wrap-up fees to review the opposition, draft the reply, and attend the hearing on this motion. However, counsel already billed 3.0 hours for drafting the initial fee motion. There is no reason why such a routine fee motion should require more than 4.0 hours to draft and defend. Accordingly, the Court strikes 2.0 hours from the anticipated fees, and awards only 1.0 hour in anticipated fees.

As for the remaining time entries, they are reasonable under the circumstances. Defendant's challenges for unnecessary/overbilled tasks, discovery, etc. are not supported.

Costs:

Civil Code §1794(d) permits the court to award reasonably incurred costs and expenses. Under the Song-Beverly Act, the Legislature intended the use of "costs and expenses" to include items excluded under C.C.P. §1033.5. (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137-138; accord *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 42-43.)

Plaintiff has not filed a separate memorandum of costs, but seeks to recover $682.91 in costs through this motion. Upon review, Plaintiff's request for costs appear to be reasonably incurred. Defendant does not contest Plaintiff's request for costs.

Plaintiff's Motion for Attorney's Fees, Costs and Expenses GRANTED in Part.

Award of $8,800+ in costs (16.0 hours at $550/hr) + $682.91 costs for total of $9,482.91.

4.

CASE #	**CASE NAME**	**HEARING NAME**
CVPS2604993	WORLOW VS TEMPLE	HEARING ON PETITION FOR TEMPORARY INJUNCTIVE RELIEF AND REQUEST TO MAINTAIN STATUS QUO

Tentative Ruling: No tentative ruling. No proof of service of Respondent. Hearing on Petition continued to 10.06.26.